

25STCV04229 25STCV04229

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-08-13

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Case Number: 25STCV04229 Hearing Date: August 13, 2026 Dept: 309

Superior Court of California

County of Los Angeles

DEPARTMENT

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TENTATIVE RULING

LILIANA SUSTAR

vs.

GENERAL MOTORS, LLC

Case

No.: 25STCV04229

Hearing Date: August 13, 2026

Defendant's

motion to dismiss Plaintiff's FAC is GRANTED.

On 2/13/2025,

Plaintiff Liliana Sustar (Plaintiff) filed suit against GM, LLC (Defendant). On

7/28/2025, Plaintiff filed a first amended complaint (FAC) alleging violations

of the Song-Beverly Warranty Act.

On 6/16/2026,

Defendant moved to dismiss Plaintiff's FAC.

The

motion is unopposed.

Discussion

Defendant

moves to dismiss Plaintiff's FAC for Plaintiff's repeated noncompliance with the discovery requirements mandated in Code of Civil Procedure (CCP) section 871.26.

In

support, Defendant contends that Plaintiff has repeatedly failed to comply with discovery obligations including Plaintiff's failure to appear for deposition even after this Court's Order compelling Plaintiff's appearance, and the failure to produce any of the mandated discovery documents.

This

noncompliance, alongside the non-opposition here, indicates that Plaintiff is either unwilling or unable to litigate this action.

Based

on the foregoing, Defendant's motion to dismiss Plaintiff's FAC is granted.

It is so ordered.

Dated: August

, 2026

Hon. Jon R.

Takasugi

Judge of the

Superior Court

Parties who intend to submit on this tentative must

send an email to the court at

by 4 p.m. the day prior as directed by the instructions provided on the court

website at www.lacourt.org. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative.

If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.